

The Usufruct License (UFL)

Version 3.6 • Operational Scope: Decentralized

LicenseRef-UFL-3.6-D-K • repo tag UFL-D-1a-K • canonical text, whitepaper, and FAQ:
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Calling a Deployment, integrating with it, and composing with it, including by other contracts, is free and unconditional for everyone, under any Operational Scope. It needs no payment, permission, or acceptance. Nothing in this license limits which contract, wallet, or person may call a Deployment, or what they do with what it returns. Calling a Deployment is not distributing it, is not incorporating it into another product under Section 2(b), and does not make the calling contract, front end, script, or application a modified version or derivative of it. Writing code that uses a Deployment's published interface to call it is likewise free.

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A Release of a Contract Release is one Deployment, identified by its chain, its address, and the hash of its verified Source, or a set of Deployments published together from the same Source. Its Ruling License is the one its notice states. A proxy contract is not a Release of its own: each implementation contract that a proxy points to is its own Release, with its own Ruling License, fixed when that implementation is deployed. Pointing a proxy at a new implementation publishes a later Release, subject to Section 1C, including its rules that a Licensor moves only forward and gives notice of a move; the new implementation's notice, and the places where the Licensor announces upgrades, give that notice. The Ruling License of the implementation that was replaced, and the rights it gave, do not change.

The Source of each Contract Release begins with an SPDX line naming this license's identifier as the generator prints it, followed by a comment that names this license, its version, and the Operational Scope, gives the canonical source <https://github.com/estejosh/UFL-Usufruct-License>, and states the SHA-256 hash of the license file kept in the Licensor's repository for that Release. That notice is the statement of the Ruling License that Section 1C calls for, and counts as including the license text with the Deployment; the full text is in the Licensor's repository at the commit the Source was published from. Where Source is flattened into one file, the file's SPDX line may be an SPDX expression that lists each license that applies to code in the file, and this license applies only to the code that is under it.

Source may import or include code the Licensor did not write, such as a library with its own license. That code stays under its own license, which this license neither replaces nor reduces, and the Licensor grants no rights in it.

A Deployment can hold or move assets, can lose them through an error in the Software or in anything it calls, and cannot be changed after it is deployed unless it was built to be upgraded. The Software, including each Deployment, is provided as is, as Section 5 says, to everyone who uses it, and a person who calls a Deployment does so at their own risk. This paragraph is a notice. It does not limit any liability that the law does not allow to be limited, and it does not bind anyone to any term.

The Decentralized scope above applies to a Contract Release as the paragraph on acceptance says: to a person through the step in a front end, app, wallet, or tool that the Licensor provides, and to a person who redeploys under Section 2A, to whom its limit of liability, payment, and dispute terms also apply. Where the scope speaks of the Software running, or of its step being bypassed, removed, or forged, it means that front end, app, wallet, or tool and not a Deployment: a Deployment is called without any step, and calling one is not a breach. The scope's rule that Software without the step is licensed under the Unconditional scope applies to a Contract Release whose Licensor provides no such tool, and for it the paragraph on acceptance is all that binds anyone to a term that needs acceptance.

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"Licensor" means the copyright holder named above. "Licensee" means anyone who uses the Software; when an individual uses it for an organization, the organization is the Licensee.

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Use that the Operational Scope withholds, made without Paid Use covering it, is licensed retroactively once the Licensee pays the following for each period of that use (a "Retroactive License"):

- (a) the Published Price in effect at the start of that period, if the Licensee disclosed the use to the Licensor in writing before the Licensor gave the Licensee written notice of it; or
- (b) three times that Published Price, if it did not;

plus simple interest at 10 percent per year, or the highest rate the law allows if that is lower, from the end of each period until paid. A Retroactive License reaches back no more than three years before the earlier of the Licensee's disclosure or the Licensor's notice.

The Published Price is the price of a license taken up front or disclosed promptly. A Retroactive License covers use the Licensor had to find, and its price reflects that. These amounts are prices for licenses, fixed in advance by this license and the same for every Licensee; they are not damages. Once paid, the use they cover is licensed as Paid Use.

13. Continued Use

The grant in Section 1 is perpetual and is not revoked for nonpayment. A Licensee that owes amounts under Section 8 or Section 12 keeps its rights under Section 1 and may keep using the Software. It remains liable for those amounts, which continue to accrue

under Section 12 for any continued use the Operational Scope withholds, until it is brought current, either by paying them or by a written agreement with the Licensor on how and when they will be paid. Once current, the Licensee continues under this license as before. This section does not limit the Licensor's remedies for conduct that Section 2 reserves.

14. Disputes

This license is governed by California law, without regard to its conflict-of-laws rules, unless the Operational Scope states otherwise.

Unless the Operational Scope provides its own dispute process, mediation and arbitration under this section cover a dispute between the Licensor and a Licensee about whether a use is Paid Use, about any amount owed under Section 8, 12, or 13, or about a usage statement under Section 10 (a "Payment Dispute"). They do not cover a Licensee's use under Section 1's free grant that raises none of those questions. Any other dispute arising out of this license or the Software is left to the law and the courts that would otherwise apply.

A Payment Dispute goes first to mediation. Either party may start mediation by written notice to the other, and the mediation must begin within 30 days of that notice. If the dispute is not resolved within 60 days of the notice, either party may submit it to binding arbitration under the Rules of Arbitration of the International Chamber of Commerce, before a single arbitrator seated in California. The parties may agree in writing to a different schedule.

Mediation and arbitration may be conducted entirely by video conference and electronic submission, and no party is required to attend in person unless the parties agree otherwise. Judgment on an arbitration award may be entered in any court with jurisdiction.

Either party may go directly to court for an injunction to stop conduct that Section 2 reserves or that infringes the Licensor's intellectual property, without first mediating or arbitrating.

Unless the Operational Scope provides its own rule on costs, in any arbitration or court proceeding under this license, the prevailing party is entitled to its reasonable attorney fees and costs.

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